



US0D1090003S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,090,003 S**
St. Peter et al. (45) **Date of Patent:** **** Aug. 26, 2025**

(54) **FOOTWEAR UPPER**

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(**) Term: **15 Years**

(21) Appl. No.: **29/908,447**

(22) Filed: **Jan. 12, 2024**

(51) **LOC (15) Cl.** **02-04**

(52) **U.S. Cl.**
USPC **D2/969**

(58) **Field of Classification Search**

USPC D2/896, 900, 902, 904, 906–908,
D2/916–924, 925–945, 969–979
CPC A43B 1/00; A43B 1/10; A43B 1/12; A43B
1/14; A43B 3/00; A43B 3/10; A43B 3/12;
A43B 3/14; A43B 5/00; A43B 5/001;
A43B 5/002; A43B 5/003; A43B 5/007;
A43B 5/008; A43B 5/02; A43B 5/06;
A43B 5/10; A43B 5/12; A43B 5/14;
A43B 13/00; A43B 13/02; A43B 13/023;
A43B 13/026; A43B 13/04; A43B 13/14;
A43B 13/141; A43B 13/18; A43B 13/181

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

D398,758	S	*	9/1998	Hlavacs		D2/972
D407,205	S	*	3/1999	Lozano		D2/972
D417,775	S	*	12/1999	Holmes		D2/972
D420,503	S	*	2/2000	McDowell		D2/972
D431,102	S	*	9/2000	Clegg		D2/972
D452,369	S	*	12/2001	Roulo		D2/973
D475,521	S	*	6/2003	Clegg		D2/972
D480,545	S	*	10/2003	Matis		D2/969

D505,252	S	*	5/2005	Belley		D2/969
D580,152	S	*	11/2008	Duffy		D2/969
D593,301	S	*	6/2009	St-Louis		D2/969
D642,778	S	*	8/2011	Raysse		D2/969
D644,012	S	*	8/2011	Akhidime		D2/969
D662,299	S	*	6/2012	Raysse		D2/969

(Continued)

OTHER PUBLICATIONS

“Saucony Men’s Ride 16”, https://www.saucony.com/en/ride-16/54184M.html?dwvar_54184M_color=S20830-27#cgid=ride-16&start=1, at least as early as Jan. 11, 2024.

(Continued)

Primary Examiner — Jonathan J Han

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(57) **CLAIM**

The ornamental design for a footwear upper as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of a footwear upper embodying the new design;

FIG. 2 is a top view thereof;

FIG. 3 is a bottom view thereof;

FIG. 4 is a right side view thereof;

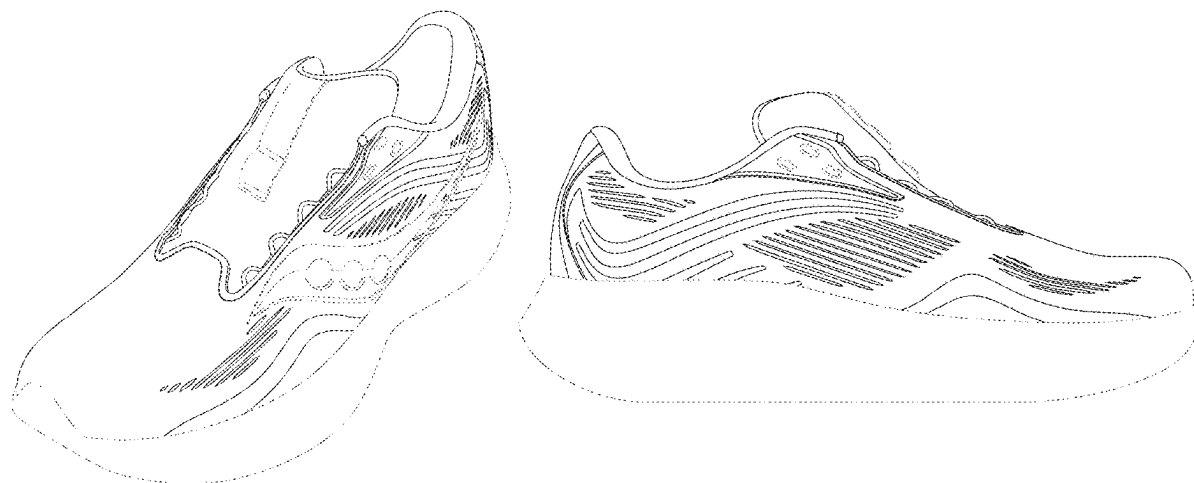
FIG. 5 is a left side view thereof;

FIG. 6 is a rear view thereof; and,

FIG. 7 is a front view thereof.

The figures show features in dash-dot-dot broken lines that form no part of the claimed design. Further, the dash-dot-dot broken lines immediately adjacent the solid line portions of the design form the boundary of the claimed design, with those dash-dot-dot broken lines forming no part of the claimed design. The evenly spaced dash-dash broken lines in the figures depict stitching, which forms no part of the claimed design.

1 Claim, 7 Drawing Sheets



(56)

References Cited**U.S. PATENT DOCUMENTS**

D663,935	S	*	7/2012	Mochen		D2/906
D671,718	S	*	12/2012	McVicker		D2/908
D772,552	S	*	11/2016	Greenspan		D2/972
D965,964	S	*	10/2022	Atwell		D2/972
D1,018,004	S	*	3/2024	Plainte		D2/969
D1,026,444	S	*	5/2024	Mahoney		D2/969
D1,033,854	S	*	7/2024	Gao		D2/969
D1,046,419	S	*	10/2024	Chang		D2/969
D1,050,686	S	*	11/2024	Fraser		D2/908
2009/0145004	A1	*	6/2009	Jones		A43B 13/183 36/114
2011/0225852	A1	*	9/2011	Mahoney		A43B 13/146 36/30 R

OTHER PUBLICATIONS

“Saucony Men’s Ride 14 Running Shoe”, https://www.amazon.com/Saucony-Mens-Running-Black-Storm/dp/B08TQHHJ25/ref=asc_df_B08TQHHJ25/?tag=hyprod-20&linkCode=df0&hvadid=529292348788&hvpos=&hvnetw=g&hvrnd=76159238547475437&hvpone=&hvpstwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvllocint=&hvllocphy=9017518&hvtargid=pla-1224021799886&pssc=1, at least as early as Jan. 11, 2024.

Saucony Men’s Ride 13 Road Running Shoe, https://www.amazon.com/Saucony-Mens-Ride-Running-Shoe/dp/B08VF97GBJ/ref=asc_df_B08VF97GBJ/?tag=hyprod-20&linkCode=df0&hvadid=532889469565&hvpos=&hvnetw=g&hvrnd=12658651758614594707&hvpone=&hvpstwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvllocint=&hvllocphy=9017518&hvtargid=pla-1392630468949&th=1&pssc=1, at least as early as Jan. 11, 2024.

“Saucony Men’s Ride 8 Running Shoe”, https://www.amazon.com/Saucony-Ride-Running-Deepwater-Citron/dp/B00PIWWZ26/ref=cm_cr_arp_d_product_top?ie=UTF8, at least as early as Jan. 11, 2024.

“Saucony Ride 9”, <https://www.nmbvcx.cf/ProductDetail.aspx?iid=87856955&pr=52.88>, at least as early as Jan. 11, 2024.

“Saucony Men’s Ride Iso Black Ankle-High Running”, <https://www.walmart.com/ip/Saucony-Men-s-Ride-Iso-Black-Ankle-High-Running-11-5W/915005389?wmlspartner=wlpa&selectedSellerId=4418>, at least as early as Jan. 11, 2024.

“Saucony Men’s Ride 10 Running-Shoes”, https://www.amazon.com/Saucony-Mens-Running-Black-Medium/dp/B071WM6W57/ref=sr_1_16?crid=3MYVPWFISZ089&keywords=saucony+ride+10&qid=1682348817&srefix=saucony+ride+10%2Caps%2C94&sr=8-16, at least as early as Jan. 11, 2024.

“Saucony Ride ISO 2 Men’s”, https://www.amazon.com/Saucony-Mens-Ride-Running-Shoe/dp/B07MCY481C/ref=sr_1_11?crid=2T0OHG37XHMC0&keywords=saucony+ride+12&qid=1682348881&srefix=saucony+ride+12%2Caps%2C92&sr=8-11, at least as early as Jan. 11, 2024.

“Saucony Mens Ride 11”, https://www.ebay.com/itm/274815069303?chn=ps&mkevt=1&mkcid=28&srltid=AfAwRE7lqLmAHBkr07LJYiHvSsOAr5IZAgUI_jZZmuW6lJpwCBAj3ov849g, at least as early as Jan. 11, 2024.

“Saucony Men’s Ride 17”, https://www.saucony.com/en/ride-17/195019910485.html?gad_source=1&gclid=Cj0KCQjwxeyxBhC7ARIsAC7dS3_-T1hN3Jab4gFlgoA5B6i00P7Qv7lvvYQ4PJVLg4UVbdiFcOI56laAgk6EALw_wcB&gclsrc=aw.ds, at least as early as Jan. 11, 2024.

“Saucony Men’s Ride 15 Running Shoe”, https://www.amazon.com/Saucony-Mens-Running-SAPPHRE-VIZIRED/dp/B097CNL3Z6/ref=sr_1_1_sspa?hvadid=627358118335&hvdev=c&hvllocphy=9017518&hvnetw=g&hvqmt=e&hvrnd=5258690374625045440&hvtargid=kwd-1827102018131&hydader=20260_13296217&keywords=saucony%2Bride%2B15&qid=1682348249&sr=8-1-spons&spLa=ZW5jcnlwdGVkUXVhbGlmaWVyPUEyUVRIM1NDQ0ZQUVFhJmVuY3J5cHRIZElkPUFwODMyNTYxQUIUWjdSQUJUR1FQJmVuY3J5cHRIZEFkSWQ9QTAAzMjE2NDYxWU1WVEJTWVhIUU03JndpZGdlE5hbWU9c3BfYXRMJmFjdGlvbj1jbGlja1JZGlyZWNOJmRvTm90TG9nQ2xpY2s9dHJ1ZQ&th=1&pssc=1, at least as early as Jan. 11, 2024.

* cited by examiner

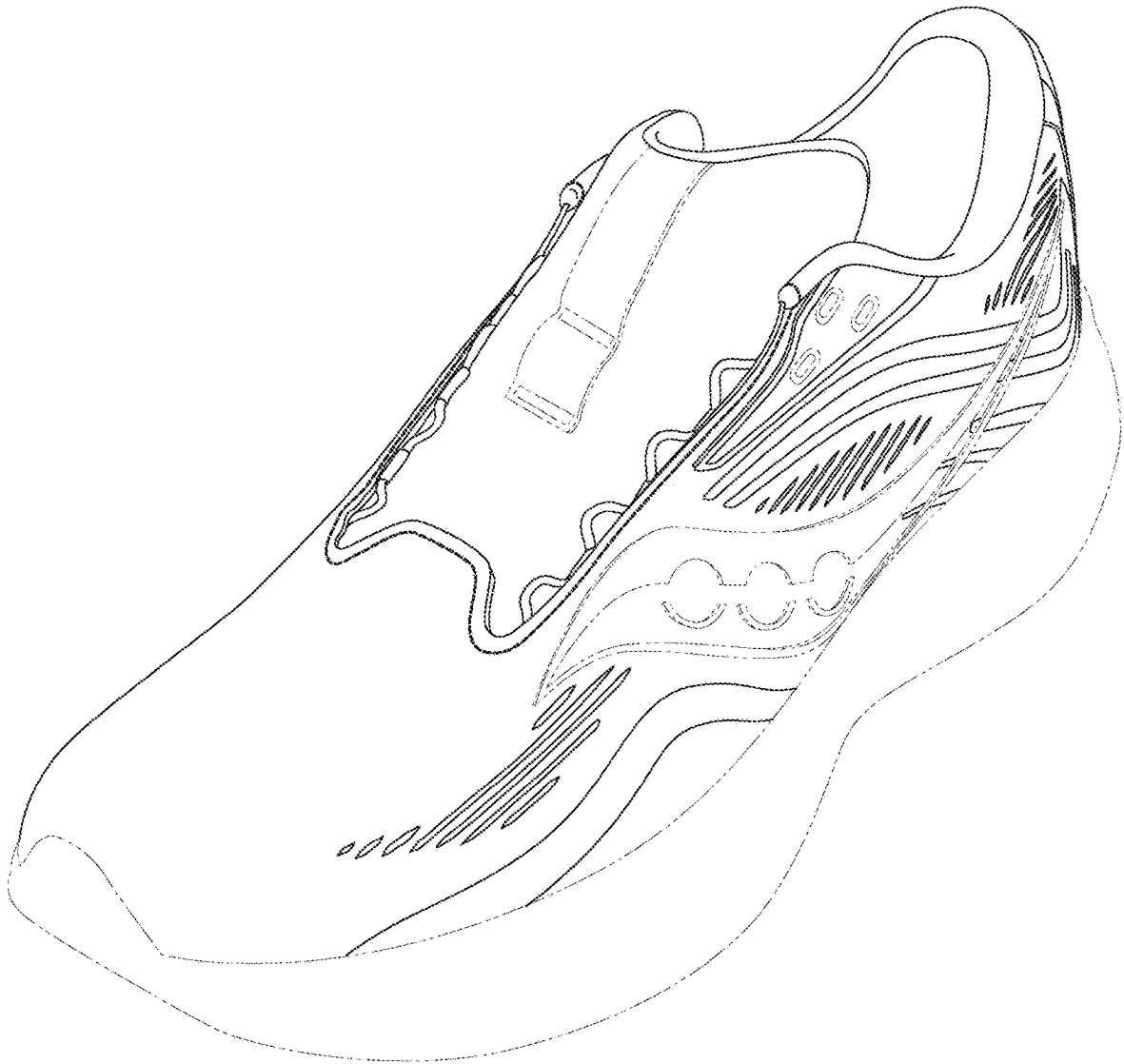


Fig. 1

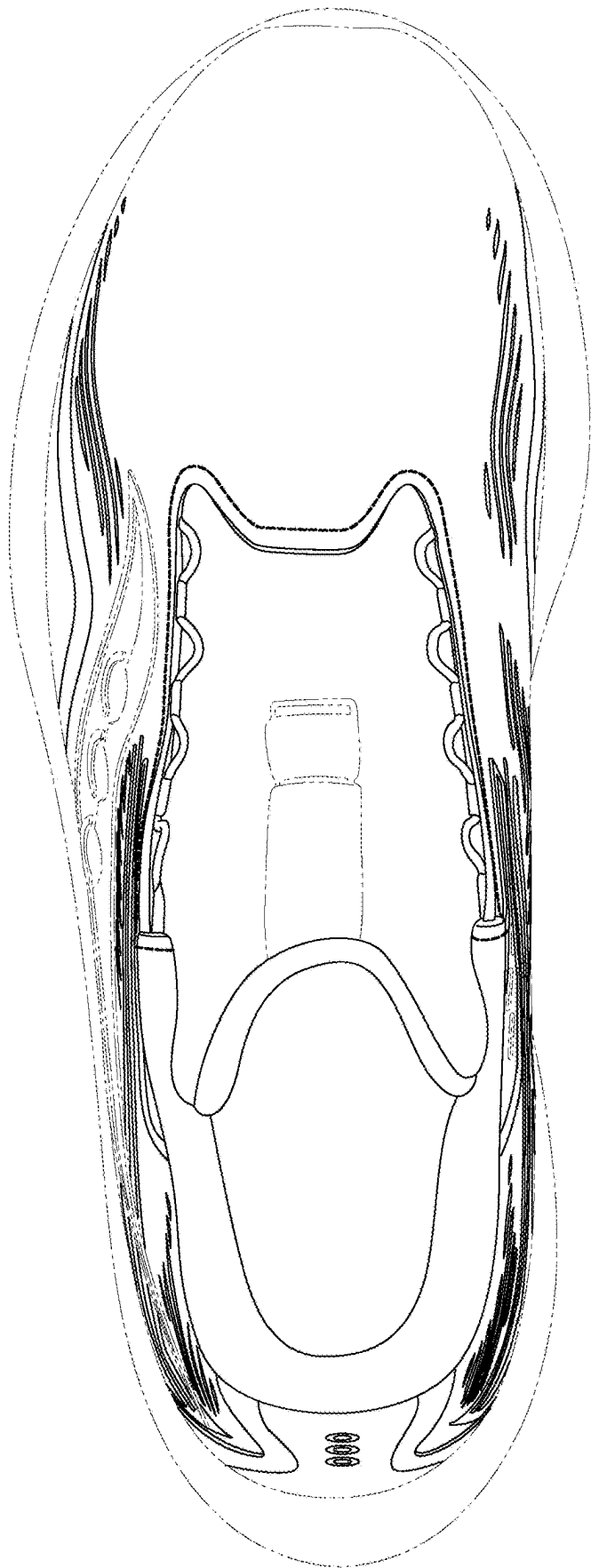


Fig. 2



Fig. 3

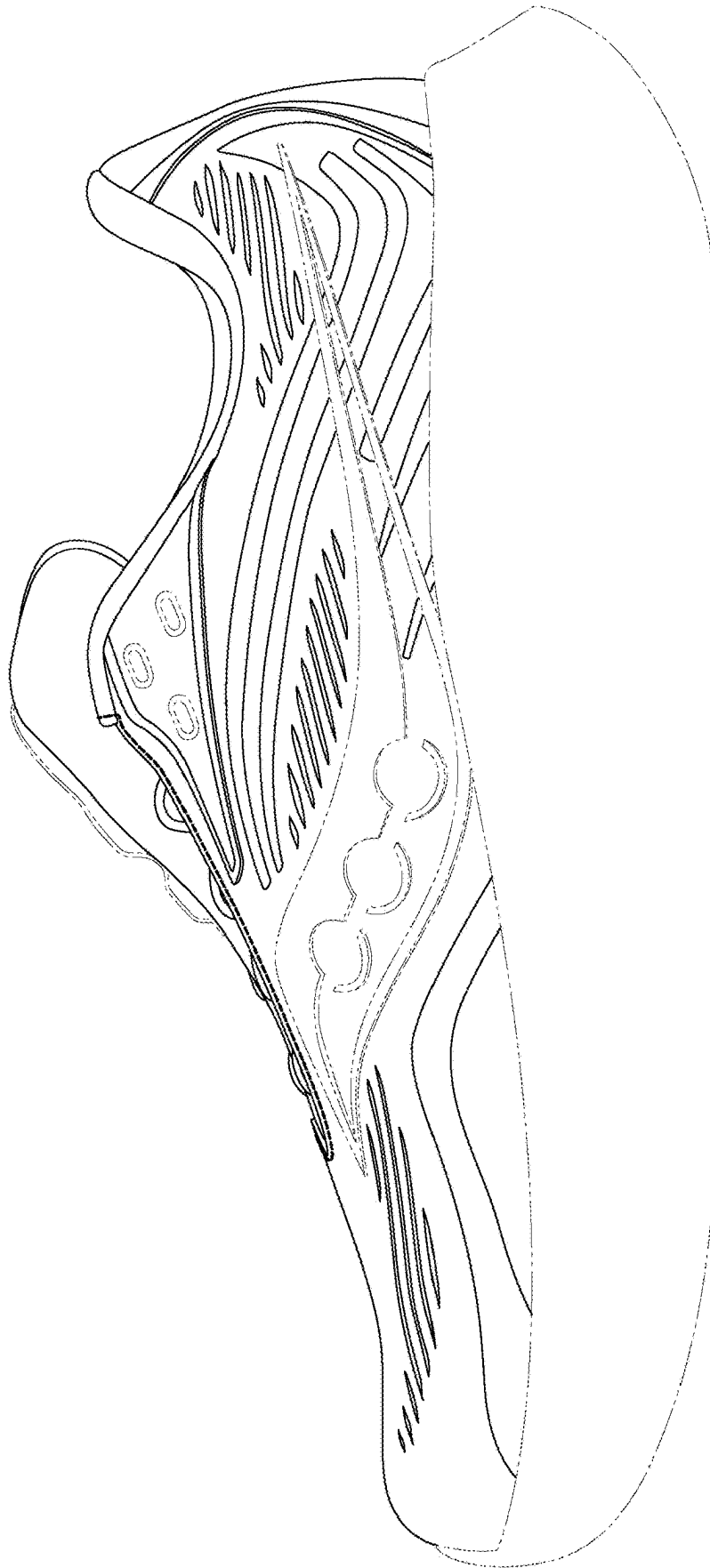


Fig. 4

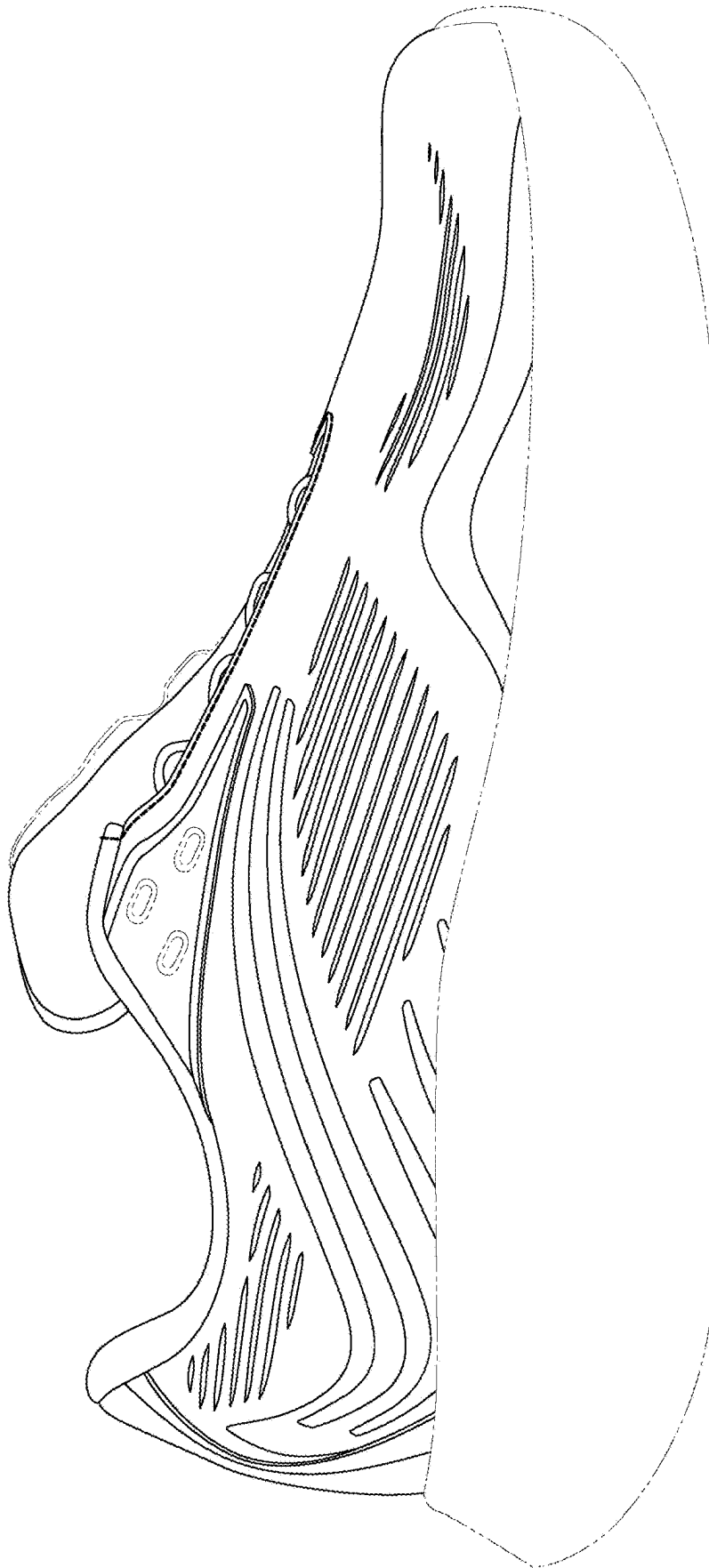


Fig. 5

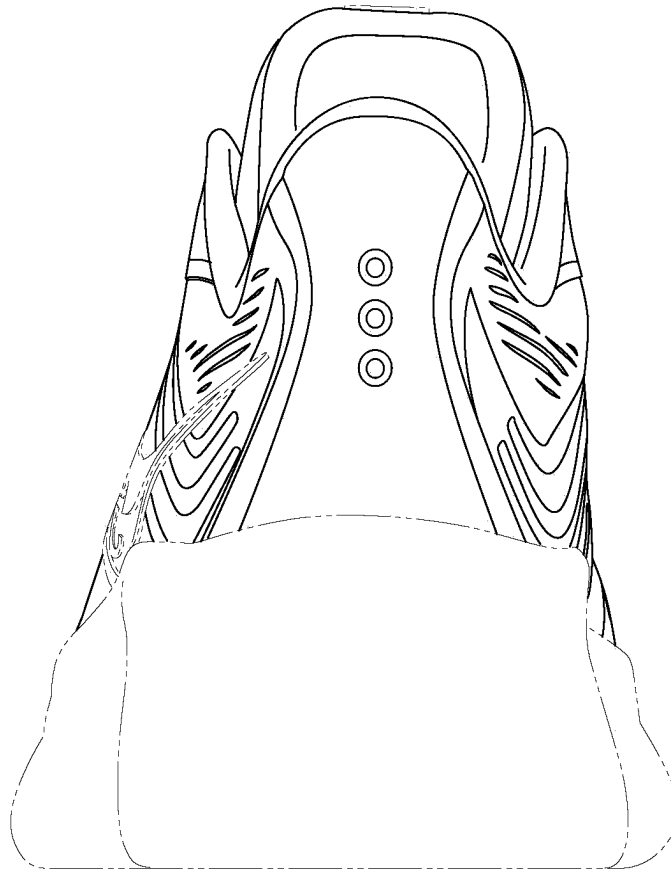


Fig. 6

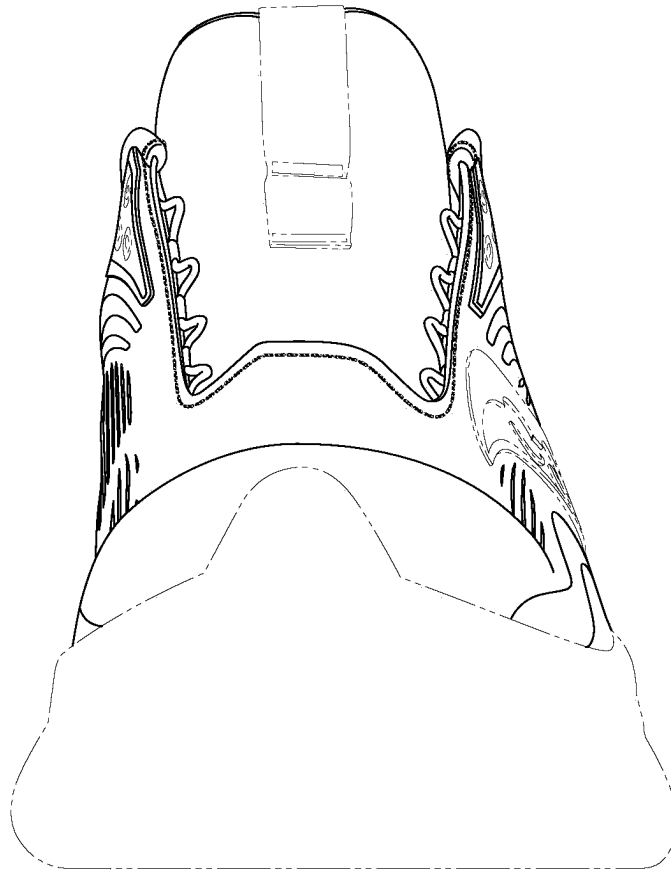


Fig. 7